ORDINANCE NO. 4

An ordinance creating a Wimbishville Police Department and conditionally creating a Police Services Tax for explicitly funding it.

Whereas the Wimbishville City Council recognizes that the City of Wimbishville must have an official law enforcement agency
Whereas the City Council acknowledges the need to fund an official law enforcement agency

NOW THEREFORE,
THE PEOPLE OF THE CITY OF WIMBISHVILLE DO ORDAIN AS FOLLOWS:

Section 1. Title and Purpose

(a) This ordinance shall hereby be known as and may be cited as the City
(b) The purpose of this ordinance is to establish a Wimbishville Police Department and a means of funding it via a special tax.

Section 2. The Wimbishville Police Department

(a) The City Council establishes Wimbishville Police Department (WPD)
(b) The WPD will be tasked with enforcing federal, state, and local laws in Wimbishville, acting under the authority of the Wimbishville City Council
(c) The WPD will be led by a police commissioner, appointed by the Mayor of Wimbishville
(d) The WPD Police Commissioner will have structural authority over the WPD, and will be tasked with supervising the WPD in accomplishing its main mission
(e) The WPD Police Commissioner may be removed from their position through impeachment by the Wimbishville City Council or removal by the mayor
(f) The WPD will be financed by the Wimbishville City Council

Section 3. Police Services Tax

(a) The City Council establishes a special 5% utility tax on all electricity utilities
(b) The special tax is to be known as the “Police Services Tax”
(c) The utility tax will be imposed on all users of electricity collected by the Wimbishville Treasury upon the time of billing
(d) The Wimbishville City Council may adjust rates on the Police Services Tax with a majority vote of voters in a municipal election.

Section 4. Use of Police Service Tax Proceeds

(a) Proceeds of the utility tax will be explicitly used to fund the WPD under the Wimbishville Treasury
(b) Proceeds are to be used for all police-related purposes, including but not limited to:
    (i) Hiring, training, and retaining sworn police officers
    (ii) Police dispatch and emergency response services
    (iii) Equipment, vehicles, and technology for law enforcement
    (iv) Crime prevention and community policing programs

Section 5. Voter Approval of Police Service Tax
(a) The Police Services Tax will take effect if approved by Wimbishville voters in a 2/3rds voting on the measure in an election
(b) The election on the Police Services Tax will be held one week after passage
(c) If the Police Services Tax is not approved by voters, the establishment of the Wimbishville Police Department will still take effect as stated under Section 2.

Section 6. Severability
If any provision of this ordinance or any portion thereof is held invalid or unconstitutional, the remainder shall continue in full force and effect.

Section 7. Effective Date
(a) Unless otherwise stated in 7(b), all sections of this ordinance shall take effect one (1) week from passage.
(b) Sections 3 and 4 of this ordinance shall take effect one (1) week after approval by voters.

Section 8. Certification
The City Council shall certify the passage of this ordinance and ensure its publication as required by law.